

23SMCV04254 23SMCV04254

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23SMCV04254 Hearing Date: July 22, 2026 Dept: M

CASE NAME: WLA Dental

Center v. Taylor Electrical Corp., et al.

CASE NO.: 23SMCV04254

MOTION: Motion

to Compel Deposition

HEARING DATE: 7/22/2026

Legal

Standard

Service of a proper deposition notice obligates a party or "party-affiliated" witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280(a).) If, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).)

A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (CCP § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

Analysis

Plaintiff WLA Dental Center moves to compel Defendant Zachary J. Howes to attend his deposition and provide documents and testimony. Plaintiff demonstrates proper service of a deposition notice. On April 23, 2026, Plaintiff served, via mail, a Notice of Taking Deposition of Defendant, setting Defendant's deposition for May 13, 2026. (Kalantari Decl., ¶ 2.) Despite this notice, Defendant failed to appear for deposition. (Id.) Defendant did not serve any objections or response. (Id.)

The Court also finds good cause for production. Independently reviewing the document requests, each request pertains to the claims and defenses at issue, especially concerning the subject Project. Accordingly, the motion is GRANTED. Defendant is ordered to appear at his deposition as noticed, on a mutually agreeable date within 30 days, at Afifi Law Group located at 525 Colorado Ave, Santa Monica, CA, 90401, beginning at 10:00 a.m. Sanctions are imposed in the total amount of \$1,560.00 against Defendant. Sanctions are to be paid by Defendant to Plaintiff's counsel of record within 30 days.